Peters Property Management

Management Agreement

"Corn Hill Cottages"

November 1, 2019 – October 31, 2020

PETERS PROPERTY MANAGEMENT

PROVINCETOWN

Your Property is our Concern

43 Race Point Road, Unit D

PO Box 542

Provincetown, MA 02657

508-487-0399

info@petersproperty mgt.com

petersproperty mgt.com

PROPERTY MANAGEMENT AGREEMENT

Agreement made this _____ day of _____, **2019** between **Corn Hill Cottage Condominium Association** (hereinafter referred to as the "Condominium") acting through its Board of Trustees and **LFS Group, Inc., d.b.a. Peters Property Management,** a Massachusetts Corporation having a principal address at 43 Race Point Road, Unit D, Provincetown, MA 02657, (hereinafter referred to as the "Company");

WITNESSETH:

WHEREAS, the Condominium is the organization of unit owners (hereinafter referred to as the "Unit Owners"), created under Chapter 183A of the General Laws of Massachusetts, (hereinafter referred to as the "Condominium"), which consists of 13 units (hereinafter referred to as the "Units"), in building(s) located at 62 Corn Hill Road, Truro, MA 02666 (hereinafter referred to as the "Building"), and certain common areas and facilities as described in the Master Deed of the Condominium recorded in the Barnstable County Registry of Deeds:

WHEREAS, the orderly and uniform administration, maintenance, appearance, upkeep, management and regulation of the Condominium is necessary and essential for the preservation and promotion of the interest of the Unit Owners in the Condominium, the protection of the economic values thereof, including the value of the Condominium's property and the convenience and well being of the Unit Owners of the Condominium;

WHEREAS, the Condominium deems it necessary and appropriate to retain a management company to manage and regulate the Condominium; and

WHEREAS, the Condominium, pursuant to its By-Laws, is authorized to appoint a management company to facilitate the management and regulation of the Condominium and has the power to enter into this Agreement.

NOW, THEREFORE, in consideration of the foregoing and the mutual promises and covenants herein made, it is agreed as follows:

1. Employment. The Condominium does hereby retain the Company as the manager of the Condominium and the Company does accept.

2. Term; Termination. This Agreement shall take effect this **1st** day of **November 2019** and shall continue in effect through the **31st** day of **October 2020**. This Agreement will thereafter automatically renew for additional one (1) year terms in succession unless either party serves notice, at least thirty (30) days prior to the expiration of the initial term or any renewal term, of its intention not to renew. The Condominium and/or Company may terminate this Agreement at any time provided that either party shall be required to give written notice thirty (30) days prior to terminating this Agreement. Upon termination all keys of the Trust shall be transferred to the Trust promptly upon request.

3. Powers and Duties of the Company. The Company shall be authorized and required to perform the following services with due diligence and care and in accordance with generally accepted industry standards:

A. Confer with Board of Trustees. Confer freely and fully with the Board of Trustees when necessary or appropriate and when so requested by them.

B. Annual Meeting. Attend annual meeting or Trustees meetings for $75.00 per hour. Minimum of 2 hours.

C. Routine Maintenance and Repairs. The common areas and facilities of the Condominium are to be maintained and repaired as directed by the Chair of the condominium. Such items as fence and trash area repairs, trim grass as necessary, clean trash barrels/replace as necessary, keep grounds clean, etc. Emergency repairs that are immediately necessary for the preservation and safety of the Condominium, and the safety of persons and are required to avoid the suspension of any essential service to the Condominium may be made by the Company. Notwithstanding this authority as to emergency repairs, it is understood that the Company will, if at all possible. confer immediately with the Chair of the condominium regarding emergency expenditures. This is billed out at $55.00 per hour, per man, Monday thru Friday from 8:00 a.m. to 4:00 p.m., plus materials. After hours is billed at $95.00 per hour, per man plus any materials necessary.

D. 24 Hour Emergency Service. is billed out at $95.00 per call, per hour and phone pages are billed out at $50.00 per call.

E. Landscaping. Our hourly rate is $55.00 per hour, per man.

F. Outside Property Inspection and Condition Report. Walk the exterior of the property semi-monthly off season (October through May), weekly inspections in high season (June thru September) to inspect the grounds, beach sand loss/accumulation, walkways, parking lots, decks, beach stairs & cottages for repairs, security issues and maintenance. Correspond with Chair and owner by email on maintenance and repair concerns. Provide a physical condition report once a year. Emergency damage from a storm, vandalism, or irregularities will be investigated and reported to the Chair and owner immediately. This charge will be $440.00 per month for high season, and $165.00 for off season.

G. Check complex after major/severe storm $55.00. If the storm coincides with the regular property checks then there will be no additional fee. After hours property check is $95.00.

H. Included with our outside inspections will be check outdoor lighting and change bulbs with energy efficient bulbs, adjust the timers and ensure the lights are pointed downward, empty charcoal grills of ash, coordinate well and septic inspection, spray for gypsy moths and poison ivy and test fire and smoke alarms in storage room. Purchasing materials and the material cost is additional.

I. Enforcing Policies. During our regular inspections we can enforce the policies while we are on site for no additional cost. If we have to make a special visit to the property it will be billed at $55.00 per hour for Monday thru Friday, 8:00 to 4:00 and $95.00 per hour after hours. If we just have to make a phone call it will be included in our monthly inspection fee.

J. Opening and Closing. Coordinate with plumber, the propane company and electrician if necessary to open and close all the units. Put out or put back trash barrels, grills, clotheslines, and attached garden hoses to outside faucets. It will be billed at $55.00 per hour, per man for Monday thru Friday, 8:00 to 4:00 and $95.00 per hour, per man after hours.

K. Special Projects. If we do the repairs we will bill at $55.00 per hour, per man for Monday thru Friday, 8:00 to 4:00 and $95.00 per hour, per man after hours. Carpentry is $70.00 per hour, per man. Repairs performed by outside vendor is cost plus 15%.

L. Non-Routine Services. Management shall assist in and, as necessary, provide services related to certain non-routine activities for which the need may arise. Non-routine services may include, without limitation, overseeing insurance claims, and capital improvements projects, for a fee of 10% of the total project.

4. Units. This Agreement does not contemplate nor is the Company responsible for or required to perform the upkeep and repair of or brokerage services for any individual Unit of the Condominium, the responsibility for which is that of the Unit Owner thereof. However, the Company may, in its absolute discretion, perform such maintenance, repair or brokerage services for a Unit as are required by the Unit Owner thereof and will charge such Unit Owner a reasonable charge thereof.

5. Condominium's Responsibility. Name property management company on their Director's & Officers and General Liability insurance as an additional insured. Provide Management company a certificate of insurance.

6. Company's Responsibility. The Company in the exercise of its powers and performance of its duties and obligations under this agreement shall be responsible solely to the Board of Trustees of the Condominium, which for all purposes of this Agreement represents all Unit Owners in the Condominium.

7. Company Liability. The Company shall not be liable to the Condominium for, and the Condominium hereby agrees to indemnify the Company from and against, any loss or damage not caused by the negligence, wrong-doing or failure to comply with the terms and conditions of this Agreement in each case, of the Company, its employees, agents or servants. The Condominium shall carry general public liability insurance covering the Company in amounts not less than $1,000,000 with respect to bodily injury or death to any one person, not less than $1,000,000 with respect to any one accident.

8. Miscellaneous. All of the covenants and agreements contained in this Agreement shall be binding upon the successors, assigns, and legal representatives of the Condominium and the Company.

The Company maintains and shall maintain throughout the term of this Agreement, liability insurance and other such insurance in such amounts and with such coverages as are customary in the property management business as conducted in the Commonwealth of Massachusetts by property management companies of similar size to the Company, and as may be required by applicable law.

The Company will comply with all applicable laws and be responsible for obtaining all licenses, permits and other authorizations necessary to own and operate its business and to perform its duties as set forth herein.

The relationship between the parties is that of independent contractors. The Company's agents and employees shall, under no circumstances, be deemed employees, agents or representatives of the Condominium. The Company shall neither have the authority to bind the Condominium nor to incur any obligations on behalf of the Condominium except as set forth in Section 4B above or as otherwise set forth in a written direction from the Condominium (which may include e-mail communications) to the Company.

This Agreement contains the entire Agreement of the parties and may not be modified except by an instrument in writing signed by both parties. This Agreement shall be governed by, and enforced under, the laws of the Commonwealth of Massachusetts. This Agreement is executed by the Board of Trustees on behalf of the Condominium. The members of the Board of Trustees executing this Agreement shall not have personal liability hereunder (except – as Unit Owners) and each Unit Owner's liability hereunder shall be limited to such proportion of the total liability hereunder as his/her interest in the common areas and facilities bears to all such interests.

Lynn A Bonner
Trustee
Chair, CHCCA.
10/18/19
Trustee

Trustee

Peters Property Management